

1 ENGROSSED HOUSE
2 BILL NO. 4226

By: Kannady of the House

and

Gollihare of the Senate

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7 An Act relating to courts; amending 20 O.S. 2021,
8 Section 1403, which relates to the disqualification
9 of judges; permitting parties to request
10 disqualification of judges under certain
11 circumstances; allowing for the filing of motions;
12 directing judges to rule on motions within fifteen
13 days; allowing for the review of disqualification
14 motions by the chief judge of the county; directing
15 presiding judge of administrative district to review
16 motion for disqualification of chief judge; providing
17 procedure for rehearing; allowing application for
18 mandamus; and providing an effective date.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 20 O.S. 2021, Section 1403, is
amended to read as follows:

Section 1403. ~~Any party to any cause pending in a court of
record may in term time or in vacation file a written application
with the clerk of the court, setting forth the grounds or facts upon
which the claim is made that the~~

A. Upon a good-faith belief that a judge is disqualified, and
~~request said judge so to certify, after reasonable notice to the~~

1 ~~other side, same to be presented to such judge, and upon his failure~~
2 ~~so to do within three (3) days before said cause is set for trial,~~
3 ~~application may be made to the proper tribunal for mandamus~~
4 ~~requiring him so to do~~ any party to any cause pending in a court of
5 record may seek disqualification of the judge by first making a
6 request to the judge in camera to disqualify himself or herself. If
7 the request is denied, the requesting party may file a written
8 motion for disqualification within ten (10) days from the denial
9 setting forth the grounds upon which the request for
10 disqualification is made. Provided, no disqualification motion
11 shall be filed less than ten (10) days before the case is set for
12 trial. The judge shall rule upon the disqualification motion within
13 fifteen (15) days from the date it is filed.

14 B. The denial of a disqualification motion shall be reviewable
15 by the chief judge of the county in which the cause is pending or,
16 if the disqualification of the chief judge is sought, to the
17 presiding judge of the administrative district, upon the filing of
18 an application for rehearing within five (5) days from the adverse
19 ruling. Rehearing on the disqualification motion shall be held and
20 ruled upon within thirty (30) days from the filing of the
21 application for rehearing.

22 C. Within five (5) days from an adverse ruling on rehearing,
23 application may be made to the proper tribunal for mandamus
24 requiring the judge to disqualify.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 11th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate